V&A websites terms & conditions

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V&A Websites Terms & Conditions

1. Using content from the V&A websites

Content on the V&A website is published for your enjoyment. You may freely access and store the majority of this Content for personal or private use. Please respect the following Terms of Use which set out the use you can make of the Websites.

Please note that the intellectual property rights in all 'Content' (including images, editorial or descriptive text, footage or any other media) featured within the 'Websites' (https://www.vam.ac.uk/ and all sub-domains) and selected social media platforms, is owned by the 'V&A' (the Board of Trustees of the Victoria and Albert Museum) and other copyright owners as specified wherever possible.

2. Using content from the V&A websites for non-commercial purposes

'V&A Owned Content' in which the V&A owns copyright (or related rights) may be used free of charge for non-commercial purposes.

The V&A considers non-commercial use to be any use that is not intended for or directed towards commercial advantage of monetary compensation.

The following are examples of non-commercial use of Content featured on the Websites which is permitted, except where other terms expressly apply:

- Using V&A Owned Content and works where copyright has expired for non-commercial research, private study, criticism and review, or for the purpose of teaching and instruction within an educational establishment.
- Using limited amounts of copyright material (V&A and other creators) without permission for the purpose of parody, caricature and pastiche.
- Downloading V&A copyright audiovisual Content for non-commercial offline listening or viewing.
- Downloading and printing of V&A copyright learning Content for non-commercial educational use.
- Embedding links to V&A audiovisual Content for non-commercial use, providing no Third Party Content rights are infringed (please see section 6).
- Any use covered by the V&A's free online Explore the Collections resource (please see section 3).

For all uses, a sufficient acknowledgment must be made to the copyright holder of work.

Nothing in these terms restricts your right to use Content where the use is covered by a copyright exception under the UK Copyright, Designs and Patents Act 1988. It is your responsibility to make sure you comply with the copyright exceptions before using in-copyright Content.

For further information please refer to the UK Intellectual Property website.

3. Using content from V&A Explore the Collections for non-commercial purposes

We support and encourage users to enjoy the V&A's Explore the Collections resource. The V&A considers the following as permitted non-commercial use of Content which can be downloaded from the Explore the Collections site free of charge subject to the conditions described below:

- Personal use of Content for non-commercial research and private study.
- Educational use of Content for the purpose of teaching and instruction or by a student in course related work within an educational establishment.
- Print based academic publications: one-time use of Content in publications with print-runs up to and including 4,000 copies, for one edition only.
- Academic e-publications, online journals, non-commercial websites and blogs: use of Content is permitted up to 5 years from first day of publication.
- Charities and non-profit organisations: one-time use of Content in print or electronic formats up to 4,000 print copies or 5 years online use.

The following conditions apply:

- Images can be published in print at up to A5 size and digitally at a maximum 768 pixels along the longest side.
- Inside publication use only: book jackets and home page uses are subject to our commercial conditions (see section 4).
- The amount of V&A Content used must not exceed 25% of the total content used in your publication or project.
- Images for use in exhibitions, displays and catalogues are subject to our commercial conditions (see section 4).
- All images must be credited as follows: © Victoria and Albert Museum, London.

To download a low-resolution image, right click the image and select 'Save Picture as/ copy image' from the pop-up menu. You will then be able to save the image onto your PC or mobile device.

Further information about how to use Explore the Collections.

4. Using content from the V&A Websites for commercial use

If you wish to use Content for any other purpose (i.e. for a use that is commercial or for a use not covered by the Explore the Collections terms and conditions), please contact our Image Licensing Team: vaimages@vam.ac.uk or visit our website at www.vandaimages.com.

Please note we are a commercial Image Library and we charge for our services. Fees will apply for any commercial use of Content, which includes but is not limited to the following:

- Content for use in publications with a print run of over 4,000 copies
- Content for broadcast, commercial website and digital use

- Content for use on book jackets, book covers and website home pages
- Content for use in exhibition displays or catalogues
- Content for use on any commercial products or packaging
- Content for use in advertising, marketing and promotion
- New photography of objects, digitisation or re-scans of existing photography

To make sure your order is managed efficiently, please provide the following information when contacting V&A Images for print, electronic or audio-visual use:

- Title
- Author
- Publisher/Producer/Broadcast
- Date of publication/release
- Print run/number of units
- Image size e.g. ¼ page, full screen
- Language
- Territorial distribution
- Where will the image feature? (.e.g. front cover, inside)
- Digital rights. Please supply format details and the licensing period required.

5. Crediting and use of V&A logo

For any V&A Owned Content, the following copyright credit line must be used, unless otherwise stated: © Victoria and Albert Museum, London

Any use of the V&A logo must be approved in advance by our Licensing Team: vaimages@vam.ac.uk

The V&A brand (including the V&A's name and logo) may not be used to suggest any endorsement or approval by the V&A of your use of Content.

6. Third party content

The V&A has made reasonable efforts to identify any Content in which a third party owns copyright ("Third Party Content"), and to secure permission for its use only by the V&A (and its affiliates, including V&A Enterprises Limited). Therefore, it is your responsibility to secure any permission or consent required for your own use of such Third Party Content.

If you are not sure who owns the copyright in any Content you wish to use, please contact: copyrightenquiries@vam.ac.uk.

If you believe that the use of any Content infringes yours or someone else's rights, please refer to the V&A’s Copyright Statement (please see section 8).

7. Sharing and uploading content to the V&A Websites

By sharing and uploading Content to the V&A Websites, you grant the V&A free of charge, permission to use that Content in any way it wants (including modifying it and adapting it for operational and editorial reasons). This may include the use of your Content by the V&A subsidiaries the Bethnal Green Museum of Childhood and V&A Enterprises (VAE) and similar organisations that repurpose V&A Content through an API.

You grant the V&A and its subsidiaries an irrevocable, non-exclusive, royalty free, perpetual and worldwide licence to use, reproduce and make available to anyone we choose your Content in any medium and to publish such reproductions in publications including but not limited to catalogues, visitor leaflets, exhibition-related materials, exhibition advertising, in-gallery displays (including electronic and screen-based displays), internal management systems, on the V&A Websites and on other websites to which the V&A contributes material where the items are made available on a non-commercial basis and/or to incorporate your contribution in other works in any media now known or later developed for the full term of any rights that may exist in your contribution, and in accordance with privacy restrictions set out in the V&A's Privacy Policy.

When you upload Content, you are also waiving your right to be identified as the author of the Content and waiving your right to object to derogatory treatment of the Content by the V&A and its subsidiaries and licensees.

When you upload Content, you are confirming that your material is your own original work and that you are fully entitled to grant to the V&A non-exclusive rights to use it. You should not violate, plagiarise, or infringe the rights of any third parties including copyright, trade mark, trade secrets, privacy, and publicity, personal or proprietary rights.

Please do not upload Content that features people that have not expressly agreed in writing to have their image made available to the V&A on these terms and where Content features children under 16 years of age please also secure the written consent of their parent or guardian.

You agree that any Content that you upload is in no way defamatory, illegal or offensive. The V&A reserves the right to remove any Content that it deems unsuitable. This will include Content that is unlawful, harassing, defamatory, abusive, threatening, harmful, obscene, profane, sexually oriented, politically motivated, racially offensive, sexist, homophobic, biphobic, transphobic or otherwise objectionable to or inconsistent with the V&A or its values.

You should not upload any Content that is intended to advertise or promote a business. The V&A reserves the right to remove any Content deemed to be advertising material.

The V&A reserves the right to use none, part or all of the Content that you upload and may delete any contribution published onto its website at any time.

If you do not want to grant to the V&A the above rights or cannot provide the warranties set out above, please do not upload your Content.

8. Copyright statement

The V&A is the world's leading museum of art and design. One of its aims is to provide access to its collections and services for diverse audiences, now and in the future.

The V&A makes reasonable efforts to protect its own intellectual property rights and the rights of others. If you believe that the use of Content (including images, editorial or descriptive text, footage or any other media) found on the V&A's Websites infringes yours or someone else's rights, please contact us, providing the information requested below:

- Your contact details
- Nature of the complaint
- V&A museum number (where applicable)
- The full web address of where you found the material
- Proof that you are the rights holder

This Copyright Statement does not obligate the V&A to respond to all complaints or other correspondence received about alleged unauthorised use of third party rights. However, the V&A will respond to and take any action it considers necessary in respect of all genuine and evidenced complaints or other correspondence received about all such alleged unauthorised use of third party rights.

9. Terms of use for V&A APIs

9.1 Statement of intent

You are welcome to use the V&A's application programming interfaces (APIs) to enhance your use of Content for non-commercial personal and educational purposes. If you wish to use our APIs for commercial purposes you must contact V&A Images at: vaimages@vam.ac.uk.

The purpose of the V&A's APIs are to maximise access to all our collections and encourage use of them. We wish to provide access to the API with as few barriers as possible. However, we reserve the right to require the use of API keys, or some other form of authentication in the future.

9.2 Best practice

Although not formally part of the terms and conditions, the V&A requests that you do the following when using our APIs.

Tell us about your use of the API by emailing us a link to your websites and describing how you are using the API service. You are encouraged to provide feedback about your experience of using the API so that we can work to improve the service.

Do not make an unreasonable number of API calls or use the API in a way which significantly compromises the experience of other users of the API. As a guideline, you should make no more than 3,000 API calls per day at a rate of no more frequently than one

request per second. The V&A may choose to limit the number of API calls more formally in the future.

Report any concern you have over copyright to the V&A using the feedback mechanism provided.

9.3 Terms and conditions

By downloading and/or making any use of the V&A's APIs you are deemed to have accepted the following terms and conditions so please do not download and/or make any use of the V&A's APIs unless you are happy to accept these terms and conditions:

- You may not sell or provide our APIs to any third parties although you may provide third parties with a link to the page of our Website where they can be found.
- You may not use the V&A logo on your website without the specific written permission of the V&A.
- You may not use the phrases "vam", "vanda", "vamuseum" or "victoria and albert" in the host name of your website or application.
- The V&A is constantly updating the database. You will not cache or store any content returned by the V&A API for more than four weeks.
- If you display images in your website or application you must use the image url returned by our API rather than create a copy on your local web server.
- You must not violate or attempt to violate the security of the API or the V&A website.
- You will not use the V&A's APIs on any website or platform that includes material that is unlawful, harassing, defamatory, abusive, threatening, harmful, obscene, profane, sexually oriented, politically motivated, racially offensive, sexist, homophobic, biphobic, transphobic or otherwise objectionable to or inconsistent with the V&A or its values.
- The V&A reserves the right to block any access to Content from websites or platforms that it deems undesirable at its sole discretion and will not be required to give reasons for any such decision to block.
- You will not use the API service to juxtapose V&A content with any illegal or defamatory material of any nature.
- You understand and agree that the V&A will not provide any technical support services in connection with any use of the API. The V&A will not guarantee availability of the API service which may be withdrawn at any time and for any reason.
- The V&A APIs are provided "as is" without any warranty as to their functionality, suitability or availability. You are responsible for ensuring that your websites or computer systems have suitable virus-blocking software and you agree that the V&A will not be responsible or liable for any virus introduced through your use of the V&A's APIs.
- The V&A reserves the right to extend or alter these terms and conditions at any time.

10. Free Wi-Fi terms and conditions

These terms apply to visitors using the V&A's free Wi-Fi service in the Museum.

By using the V&A's Wi-Fi, you agree to be bound by these terms. The use of this Wi-Fi is subject to this acceptable use policy. Please be aware, we use a variety of technical means to enable user authentication which may include cookies. We will also use information from your usage of the Wi-Fi for service monitoring and improvement purposes.

You agree that you will at all times when using the V&A's Wi-Fi comply with the following terms:

- Act lawfully – do not act in any way that could be unlawful or encourage others to act unlawfully. In particular, do not infringe intellectual property rights, do not reveal confidential or sensitive information and do not engage in any criminal offence or encourage others to do so.
- Act responsibly – you must not undertake actions or visit websites that are unlawful, harassing, defamatory, abusive, threatening, harmful, obscene, profane, sexually oriented, politically motivated, racially offensive, sexist, homophobic, biphobic, transphobic or otherwise objectionable to or inconsistent with the V&A or its values.
- Act honestly – do not pretend to be anyone other than yourself. Do not collect email addresses or other personal details or use the Wi-Fi to send spam.
- Act reasonably – do not use Wi-Fi access in any way that may affect the running of the Wi-Fi or network or other technology connected to it (for example, other Wi-Fi users' devices). In particular, do not upload or download very large files and make sure your devise is protected by up-to-date anti-virus software.

You accept that, on occasion, the Wi-Fi may not be available due to technical, legal or operational reasons. We may control the types of material that can be sent or received over the Wi-Fi and may, at our discretion, suspend your access at any time without responsibility to you.

The V&A Wi-Fi is provided "as is" without any warranty as to its functionality, suitability or availability. You are responsible for ensuring that your devices have suitable virus-blocking software and you agree that the V&A will not be responsible or liable for any virus introduced through your use of the V&A's Wi-Fi. Use of the Wi-Fi is at your own risk and we are not liable to you for any damages, losses, costs or expenses you may suffer because the Wi-Fi is unavailable, does not operate as expected or causes loss or damage to any data. You are responsible for all damage, losses, costs or expenses suffered by us arising out of any breach by you of these terms. If we are subject to any claim or request for information about your use of the Wi-Fi, we may disclose information about you.

When you use the V&A's services to access another network or service, you undertake to follow their acceptable use policies. Any violation of their acceptable use policies will be regarded as unacceptable use of our services too.

11. Enquiries

To contact the V&A about the Websites or any Content, please email: webmaster@vam.ac.uk.

Please email your comments and other feedback to: vanda@vam.ac.uk or contact us via our enquiry form if you have any specific enquiries about objects in the V&A's collection.

For any commercial use, please contact our Image Licensing Team: vaimages@vam.ac.uk or visit our website at: www.vandaimages.com

12. Liability

To the extent permitted by law, the V&A excludes all conditions, warranties, representations or other terms which may apply to the Websites or any Content, whether express or implied. We will not be liable to any user for any loss or damage, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, even if foreseeable, arising under or in connection with your use of, or inability to use, our Websites, APIs, Wi-Fi or your use of or reliance on any Content, PROVIDED THAT nothing in these Terms of Use shall restrict or exclude any liability that the V&A has to any party which cannot be excluded by law.

The V&A assumes no responsibility for the content of websites linked to or from the Websites. Such links should not be interpreted as endorsement by the V&A of those linked websites and the V&A shall not be liable for any loss or damage that may arise from your use of them.

12.1 Breach of these Terms of Use

The V&A keeps electronic records of all High Resolution Images downloaded from the Websites. In the event of any identified breach of these Terms of Use (involving the misuse of High Resolution Images or otherwise), the V&A (and/or its affiliates) may take appropriate action to constrain further use and/or to seek financial recompense.

13. No waiver

No failure by the V&A to exercise or enforce any of its rights under these Terms of Use will be deemed to be a waiver of such rights or a bar to their exercise or enforcement in the future.

14. Data protection

The V&A will keep a record of any information you provide about yourself and your downloaded content for rights management and enforcement purposes but, except for such purposes, will not provide that information to any third party and will otherwise comply with all applicable laws (including the Data Protection Act 1998).

15. Law and jurisdiction

These Terms of Use are governed by the laws of England and Wales and the courts of England and Wales shall have exclusive jurisdiction over any dispute arising from them.

16. Terms and conditions for buying event and exhibition tickets

Event and exhibition tickets

- Please ensure you select your correct date prior to checkout. TICKETS CANNOT BE EXCHANGED OR REFUNDED.
- The V&A reserves the right to amend or make alterations to the published details of the event as shall become necessary.
- The V&A reserves the right to refuse admission and may on occasion conduct security searches to ensure the safety of visitors.
- This ticket is valid for one admission only.
- The V&A shall not be responsible for loss or damage to personal property brought into the Museum.
- Any ticket re-sold or transferred for profit or commercial gain without written permission from the V&A becomes void and the holder may be refused entry or ejected from the venue.
- If you require further assistance with your booking, please forward queries to: hello@vam.ac.uk

Exhibition tickets

- Children under 12 are admitted for free when accompanied by a paying adult, and do require a ticket. Please select the free under-12s tickets from the bottom of the pricing list when completing your ticket purchases.
- V&A Members enjoy free entry to exhibitions and DO NOT need to pre-book.
- Limited exhibition tickets are available to purchase at the Museum on the day of your visit. You are advised to arrive at the V&A for when the Museum opens at 10.00 for the best chance of purchasing a ticket. Please note tickets bought on the day may not be for immediate entry to the exhibition, but for later on that day. Some queuing time may be expected.

These Terms of Use were last updated in June 2022.